

State of cybersecurity legislation and regulation?



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Cybersecurity legislation and regulation in India is on an exciting trajectory right now. The Digital Personal Data Protection (DPDP) Act, 2023 represents a watershed moment, not just for data privacy but for the overall cybersecurity posture of the nation. Going beyond legal frameworks, the DPDP Act is a strategic recognition of the complexities within our rapidly evolving digital ecosystem.

Strong data privacy practices, as mandated by the Act, ensure confidentiality and control over individual information. This, in turn, strengthens cybersecurity by limiting unauthorised access and potential disruptions.

I firmly believe that the Act will serve as a catalyst for a significant shift in the maturity of cybersecurity practices across all sectors in India. While the IT Act, 2000 has provided a strong foundation for over two decades, and specific sectors like banking have robust cybersecurity regulations, the DPDP Act (<https://bit.ly/3vajwTf>) has the potential to unify these efforts and create a comprehensive national impact.

To truly capitalise on this potential, a collaborative approach is crucial. Businesses, government entities, and individuals must work together to innovate and implement effective cybersecurity solutions. It is about creating a culture of cyber safety, where protecting digital assets becomes a shared responsibility and a fundamental right for all.



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Cybersecurity regulation is constantly evolving since the threat landscape is always changing with newer threats and threat technologies emerging almost daily. Different government bodies globally have put in place cyber laws and online privacy laws, but the struggle to keep up with the cyberthreats is real. Internet regulation is a complex patchwork of sector-specific and medium-specific laws, including laws and regulations that address telecommunications, health information, credit information, financial institutions, and marketing. There is certainly a need to evolve the regulations with changing threat scenarios. For instance, AI generated threats require a totally different kind of regulation with global cooperation.



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When it comes to regulations and legislation, it is more important to get it right than to go fast. And the Indian government has gotten it right. It's applying strong protection for personal digital data. It's focused on the kinds of consent requirements, while at the same time, it allows data to cross borders, which is important because India serves the world in terms of data. Microsoft recently unveiled a blueprint for India on artificial intelligence (AI) governance and proposed a regulatory architecture to oversee safety protocols. The recommendations call for developing new laws and regulations for highly capable AI foundation models and advise the government to classify high-risk AI systems and ensure that operators test and monitor these systems for the control of infrastructure.